
Blofield Primary School Visit Report**Audit Date: 03/03/20****Report: Year 2 visit 2****DPE: Stuart Lee****School member: Teresa Doggett (HT), Simon (Governor), Sarah D’Rosario (Office) and Andy (GDPR lead) attended for part of the meeting.**

1. Visit details

Key GDPR documentation was reviewed and DPE best practice areas were discussed with the school. The best practice areas and checklists are used by the school and will support future visits. Simon (governor responsible for GDPR) attended the meeting and some of the visit time was spent discussing compliance and accountability at governor level. SL confirmed that the school had a proactive ‘team’ approach to GDPR; good practice was and is being embedded across the school; the school had completed key GDPR documentation and had either completed, or actions from the first meeting were in progress. Sarah makes good use of her remote sessions with Kalina and Sarah confirmed that the Record Management policy and ICT classification guidelines are now completed.

Key actions from the visit are detailed below with further details in the main report:

- School to add GDPR reporting in to the headteachers report;
- School to use staff meetings and briefings to continue to raise staff awareness;
- School to follow up with staff yet to complete GDPR training;
- School to add Simon to the website and Simon to complete module 1 and 2 of the GDPR training;
- The school now has an operational CCTV system with just the one camera. School to add signage and sign off the CCTV Policy – School to update the Privacy Notice and GDPR policy to include CCTV and use the DPE checklists/documentation;
- School to remove Stuart Lee from any GDPR documentation and replace with: Data Protection Education Ltd
- School to update the website and remove the GDPR information page as this is now outdated;
- SL to send governorhub documentation (attached);
- SL to send link to a schools publication scheme: http://d6vsczyu1rky0.cloudfront.net/38206_b/wp-content/uploads/2018/05/Freedom-of-Information-publication-scheme-2018-template-V32017.pdf
- The school has started the process of moving to Cloud solutions and were advised of the upcoming workshops that it would be beneficial for the school to attend. SL is also following up with DPE regarding involving ICT staff within the workshops. The school are also going to check what documentation the ICT provider has in managing the risks.

2. Audit walk findings

Discussed previous report actions and it was agreed no audit walk would be completed during the visit. Sarah to complete an afterschool walk. Best practice guide distributed during the meeting. 2 areas were discussed:

Visitor signing in system (action points):

- The school has reverted to the original signing in system but now display a notice for visitors to request a separate signing in sheet if they are not happy signing the open book. DPE would always advocate confidential signing in but the school can minimise the risks further by operating a ‘closed book system’ and ensure the sign is displayed on the front cover of the book. School to continue to review.

CCTV (action points):

- In addition to working through the DPE checklist and model documentation the school are to add signage to the area near to where the CCTV camera is;
- CCTV recording base unit is on open display. Ideally this would be in a secure area/kept secure.

3. Compliance actions that should now be completed

Initial documents:

- **Privacy Notice**
- **GDPR Policy – add CCTV section**
- **Data Breach Procedure.**
- **SAR procedure**
- **Photo and Video consent**

Ideally you would also have: Work away from school, clear desk and screen, information classification and record management policy/paperwork. Schools have either adopted the DPE models or incorporated some of this within their staff handbook, for example, work away from school.

The following should also be completed:

- There should be no named person on any of the above documents. If there is a named person i.e. Stuart Lee, the name needs replacing with: Data Protection Education Ltd;
- The Privacy Notice should have an appendix with your third-party suppliers listed. If using GDPRiS this should also be kept updated. You should also make sure suppliers are GDPR compliant;
- The Privacy Notice, GDPR Policy and consent withdrawal form should be displayed on the school website;
- All staff should know what the data breach procedure is, and the document should be circulated to all staff;
- Key staff responding to SARs should have access to the SAR procedure and understand their responsibilities.

3.1. Data retention schedule:

By now you should be working through both physical and electronic data and have a good understanding of what data you hold and be documenting this. There are a number of documents available to support the process:

- Governor hub: annual review of school data and safe data destruction checklist
- IRMS toolkit: https://c.ymcdn.com/sites/irms.site-ym.com/resource/collection/8BCEF755-0353-4F66-9877-CCDA4BFEEAC4/2016_IRMS_Toolkit_for_Schools_v5_Master.pdf
- DfE toolkit
https://assets.publishing.service.gov.uk/government/uploads/system/uploads/attachment_data/file/747620/Data_Protection_Toolkit_for_Schools_OpenBeta.pdf (Annex 5,1)

3.2. Staff training

GDPR training should be completed and documented. If not already you should:

- Rollout training to key staff and then consider all staff completing the e-learning training;
- Add as part of the induction process for new staff;
- Use staff meetings/briefings to raise staff awareness.

3.3. Governance check

It should form part of governance that GDPR is an item at governor meetings and to share reports with governors. Ideally the governor responsible for GDPR will have completed some form of GDPR training.

3.4. Make sure DPE is your registered DPO with the ICO

Not only do you need to be registered as a controller with the ICO, it is a requirement to register who your DPO is. The guide to complete this is available from the News section of the DPE website: <https://kb.dataprotection.education/news-top/news/83-best-practice-updates/110-make-sure-dpe-is-your-registered-dpo-with-the-ico>

4. Freedom of Information and Publication Scheme

The DPE GDPR policy and FOI policy content refer to the organisation having a publication scheme - do you have one? **The template for a model publication scheme can be obtained from:** <https://ico.org.uk/media/for-organisations/documents/1235/definition-document-schools-in-england.pdf> How to complete a publication scheme guide can be obtained from: <https://ico.org.uk/media/for-organisations/documents/1242/how-to-complete-template-guide-to-info-for-schools.pdf> Additional guidance can be obtained from the news section of the DPE website: <https://kb.dataprotection.education/news-top/news>

5. Technical measures

DPE recommends schools complete the Cyber essentials questionnaire available from: DPE>Resources> Information Technology Security: <https://kb.dataprotection.education/best-practice-library/documents/information-technology-security/7-crest-cyber-essentials-questionnaire>;

Check iPad/Tablet security. Are all laptops encrypted, does your end of day routines include housekeeping to remove data no longer needed and is equipment secured? Do staff still use unencrypted memory sticks? DPE recommends schools develop procedures to ensure iPads can be accounted for daily and data (i.e photos) can be cleared if lost or stolen ([Erase your device](#))

6. Next steps

Record of Processing (RoP) tool and data mapping

DPE have started to populate the Record of Processing (RoP) tool. Rather than each school complete individually, DPE will be populating as many processes as possible and then work with you to complete for your school. It is a requirement under article 30 of the GDPR and will form part of the basis for future remote sessions and visits.

6.1. Data Protection Impact Assessments (DPIA)

When processing high risk personal data and using new technologies (i.e. moving to a new technology for Safeguarding) a DPIA should be completed and the DPO consulted (Article 35.2). DPIAs offer a risk assessment template where concerns can be noted alongside mitigating actions to reduce the overall risks related to change of practice. It is good practice to complete a DPIA for any major project where the processing of personal data is required. DPE will be providing more guidance, training and include risk management within the RoP tool. Always contact DPE in the first instance.

7. Norfolk County Council Summer GDPR audits

NCC auditors completed several themed GDPR audits during the summer term 2019. DPE have provided feedback to the findings which can be obtained from the News section of the DPE website: <https://kb.dataprotection.education/news-top/news>